



CHAPTER xxxvii.

An Act to empower the mayor aldermen and citizens of the city of Coventry to construct waterworks and to take further water from the river Avon to authorise the supply of heat by means of hot water and steam to alter the qualification for obtaining the freedom of the city to confer further powers on the Corporation with regard to the health improvement and good government of the city and for other purposes.

[30th July 1948:]

WHEREAS the city of Coventry (hereinafter called "the city") is under the management and local government of the mayor aldermen and citizens of the city (hereinafter called "the Corporation"):

And whereas the Corporation are the owners of the waterworks which supply water throughout the city and in a considerable area outside the city and by the Coventry Corporation Act 1939 were authorised to construct works for taking water from the river Severn: 2 & 3 Geo. 6.
c. lxxxviii.

And whereas it is expedient that the Corporation should be authorised to make and maintain the works authorised by this Act in substitution for certain of the said works and that the time for constructing the other works authorised by the said Act of 1939 should be extended as provided by this Act:

And whereas it is expedient in order to meet the immediate demand for water in the area supplied by the Corporation to enable the Corporation to take further water from the river Avon beyond the quantity which they are authorised to take under the Coventry Corporation Act 1940 as amended by the Coventry Corporation Act 1942 and to amend the last-mentioned Act as provided by this Act: 3 & 4 Geo. 6.
c. xx.
5 & 6 Geo. 6.
c. xvi.

And whereas it is expedient to empower the Corporation to supply heat by means of hot water or steam in the city:

And whereas it is expedient to make further and better provision with regard to the health and improvement of the city and to enlarge the powers of the Corporation with regard to those matters as provided by this Act:

And whereas in view of the altered circumstances with regard to national service it is expedient to alter the conditions relating to the qualification for obtaining the freedom of the city:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for and in connection with the following purposes:—

	£
(a) The purchase of lands and easements for the purposes of this Act	750
(b) The construction of so much of Works Nos. 2 4 6 and 9 authorised by this Act as does not consist of machinery ...	385,000
(c) The provision of machinery in connection with Work No. 6 authorised by this Act...	125,000
(d) The construction of Works Nos. 1 3 5 7 8 and 10 authorised by this Act	25,000
(e) The construction of Works Nos. 11 and 12 authorised by this Act	5,000
(f) The additional cost of acquisition of lands and easements authorised by the Coventry Corporation Act 1939	31,000
(g) The additional cost of the construction of the following waterworks authorised by the Coventry Corporation Act 1939:—	
(i) So much of Waterworks Nos. 1 2 3 4 5 and 6 as does not consist of machinery	55,000
(ii) The provision of machinery in connection with Waterworks Nos. 1 2 3 4 and 5	35,000
(iii) Waterworks Nos. 9 10 11 12 13 14 16 17 18 and 19	1,315,000
(iv) Waterworks Nos. 7 and 8 ...	108,000

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the Corporation be empowered to borrow money for those purposes as provided by this Act:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed: 23 & 24 Geo. 5.
c. 51.

And whereas plans and sections showing the lines and levels of the works authorised by this Act and showing the lands required or which may be taken for the purposes or under the powers of this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited with the clerk of the county council of the administrative county of Worcester which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Coventry Corporation Act Short title. 1948.

2. This Act is divided into Parts as follows (that is to say):— Division of
Act into Parts.

Part I.—Preliminary.

Part II.—Lands.

Part III.—Waterworks and water supply.

Part IV.—Heating undertaking.

Part V.—Streets buildings sewers and drains.

Part VI.—Nuisances and sanitary matters.

Part VII.—Markets and fairs.

Part VIII.—Weighing machines.

Part IX.—Freedom of the city.

Part X.—Financial provisions.

Part XI.—Miscellaneous provisions.

PART I.
—cont.
Incorporation
of Acts.

3. The following enactments (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

(1) The Lands Clauses Acts with the following exceptions and modification:—

(a) Section 92 (Parties not to be required to sell part of a house) and sections 127 to 132 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) are not incorporated with this Act;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section:

(2) With Part II (Lands) and Part III (Waterworks and water supply) of this Act the following provisions of the Third Schedule to the Water Act 1945:—

Part II. (Works and lands) except sections 2 and 7;

Part IV. (Minerals underlying waterworks);

In Part VI. (Breaking open streets &c.) sections 22 23 (except paragraph (b) of the proviso to that section) 24 26 27 and 28;

Part XIV. (Pollution of water by manufacture &c. of gas);

In Part XVI. (General and miscellaneous) sections 80 83 84 87 90 92 93 and 94:

(3) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and in such provisions for the purposes of this Act “the railway” means the waterworks authorised by this Act and “the centre of the railway” means the centre of such waterworks respectively.

Interpretation
of terms.

26 Geo. 5. &
1 Edw. 8.
c. 49.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Act 1936 shall have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

PART I.
—cont.

“ The city ” means the city of Coventry;

“ The Corporation ” means the mayor aldermen and citizens of the city;

“ The council ” means the council of the city;

“ The town clerk ” “ the medical officer ” “ the city engineer ” and “ the sanitary inspector ” mean respectively the town clerk the medical officer of health the engineer and any sanitary inspector of the city;

“ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the city;

Each of the expressions set out in the first column of the following table means the Act or Order set out opposite thereto in the second column of that table:—

“ The Act of 1900 ”	The Coventry Corporation Act 1900;	63 & 64 Vict. c. cclxii.
“ The Act of 1907 ”	The Coventry Corporation Act 1907;	7 Edw. 7. c. ci.
“ The Act of 1911 ”	The Coventry Corporation Act 1911;	1 & 2 Geo. 5. c. viii.
“ The Act of 1920 ”	The Coventry Corporation Act 1920;	10 & 11 Geo. 5. c. lxxxviii.
“ The Act of 1927 ”	The Coventry Corporation Act 1927;	17 & 18 Geo. 5. c. xc.
“ The Act of 1928 ”	The Coventry Corporation Act 1928;	18 & 19 Geo. 5. c. cx.
“ The Act of 1930 ”	The Coventry Corporation Act 1930;	20 & 21 Geo. 5. c. lxxxvi.
“ The Act of 1939 ”	The Coventry Corporation Act 1939;	
“ The Act of 1940 ”	The Coventry Corporation Act 1940;	
“ The Act of 1942 ”	The Coventry Corporation Act 1942;	

“ The heating undertaking ” means the undertaking authorised by Part IV of this Act and includes all lands stations boiler-houses properties works buildings machinery plant mains pipes apparatus appliances easements rights powers and privileges for the time being belonging to or held used or enjoyed by the Corporation for or in connection with the supply of heat by means of hot water or steam;

PART I.
—cont.

“ Contravention ” includes a failure to comply and
“ contravene ” shall be construed accordingly;

“ Daily penalty ” means a penalty for each day on which
an offence is continued after conviction;

“ Weighing machine ” means a weighing machine avail-
able for the use of the public for the purpose of ascer-
taining the weight of any vehicle or the loading
thereof;

“ The Minister ” means the Minister of Health;

“ The Lands Clauses Acts ” means the Lands Clauses
Acts as modified by the Acquisition of Land (Assess-
ment of Compensation) Act 1919 by Part V of the
Town and Country Planning Act 1947 and by this
Act;

“ The county ” means the administrative county of
Worcester;

“ The county council ” means the county council of the
county;

“ The authority ” means the British Electricity Authority;

“ The board ” means the East Midlands Electricity
Board;

“ The commission ” means the British Transport Com-
mission and any reference to the commission in rela-
tion to any functions of the commission which are for
the time being delegated to an executive in pursuance
of section 5 of the Transport Act 1947 shall be con-
strued as a reference to that executive;

“ The Act of 1933 ” means the Local Government Act
1933;

“ The Act of 1936 ” means the Public Health Act 1936.

PART II.

LANDS.

Power to
take lands.

5. Subject to the provisions of this Act the Corporation may enter upon take appropriate and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference which they may require for the purposes of the works authorised by Part III (Waterworks and water supply) of this Act and for other the purposes of the water undertaking of the Corporation.

Correction
of errors in
deposited
plans and book
of reference.

6.—(1) If there is any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten

days' notice to the owners lessees and occupiers of the lands in question may apply to two justices having jurisdiction in the place in which the lands are situate for the correction thereof.

PART II.
—cont.

(2) If on any such application it appears to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described.

(3) Any such certificate or a copy thereof shall be deposited with the clerk of the county council and a duplicate thereof shall be deposited with the clerk of the rural district council of Pershore and thereupon the deposited plans and book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with the certificate.

(4) Any certificate or copy and duplicate deposited under this section shall be kept by such clerks respectively with the other documents to which the same relate.

7. The powers granted by this Act for the compulsory purchase of lands shall cease on the thirty-first day of December nineteen hundred and fifty-one.

Period for
compulsory
purchase of
lands.

8. The Corporation subject to the provisions of this Act may enter into and carry into effect agreements with any person being the owner of or interested in any lands or property abutting on any portion of the lands which the Corporation may acquire under the powers of this Act with respect to the sale by the Corporation to such person of any lands or property for such consideration as may be agreed upon between the Corporation and such person and the Corporation may accept as satisfaction of the whole or any part of such consideration the grant by such person of any lands or property required by the Corporation for the purposes of this Act.

Agreements
with owners
of property
&c.

9. No person shall be required to sell a part only of any house building or factory or of any land which forms part of a park or garden belonging to a house if he is willing and able to sell the whole of the house building factory park or garden unless the arbitrator to whom the question of compensation is referred determine that in the case of a house building or factory such part as is proposed to be taken can be taken without material detriment to the house building or factory or in the case of a park or garden that such part as aforesaid can be taken without seriously affecting the amenity or convenience of the house and if the arbitrator so determine compen-

As to taking
parts of
certain
properties.

PART II.
—cont.

sation shall be awarded in respect of the severance of the part so proposed to be taken in addition to the value of that part and thereupon the person interested shall be required to sell to the Corporation that part of the house building factory park or garden.

Dwelling-
houses for
employees.

10.—(1) The Corporation with the consent of the Minister may purchase or take on lease dwelling-houses and other buildings for persons employed by them otherwise than in their water and gas undertakings and may erect fit up (but shall not furnish) maintain and let any such buildings upon any lands for the time being belonging to them and (subject to the terms of the lease) upon any lands for the time being leased to the Corporation.

(2) Nothing contained in this section shall empower the Corporation to create or permit a nuisance.

Power to
purchase lands
by agreement
for purposes
of gas
undertaking.

11. Subject as in this section provided the Corporation may for the purposes of their gas undertaking purchase and take (by agreement but not otherwise) and may hold together with such lands as they are authorised to purchase and hold for the purposes of that undertaking any lands which they may require for those purposes not exceeding one hundred acres but the Corporation shall not create or permit a nuisance on any lands purchased under the powers of this section and no lands purchased under those powers shall be used by the Corporation for the purpose of manufacturing gas or residual products.

Purchase of
land for
purposes of
Part IV of
this Act.

12.—(1) The Corporation may be authorised to purchase land compulsorily for the purposes of Part IV (Heating undertaking) of this Act.

9 & 10 Geo. 6.
c. 49.

(2) The Acquisition of Land (Authorisation Procedure) Act 1946 (except section 2 thereof) shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of that Act.

(3) Section 24 (Acquisition of easements) of the Act of 1928 shall apply to any land which the Corporation are for the time being authorised to acquire compulsorily for the purposes of the said Part IV of this Act as if the expression "waterworks authorised by this Act" in the said section included works for the purposes of the said Part IV of this Act.

PART III.

WATERWORKS AND WATER SUPPLY.

Power to
make works.

13.—(1) Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations and according to the levels shown upon the deposited plans and

sections and upon the lands delineated on those plans and described in the deposited book of reference the following works in the county (namely):—

In the parish of Strensham in the rural district of Pershore—

Work No. 1. An aqueduct or line or lines of pipes commencing by a junction with Work No. 10 authorised by the Act of 1939 on the west side of the enclosure numbered 78 on the 1/2500 Ordnance map (edition 1923) Worcestershire sheet XLVIII.10 at a distance of $4\frac{1}{2}$ chains or thereabouts measured in a southerly direction from the building known as “ The Farm ” shown on the said map and terminating at the sedimentation tanks (Work No. 2 authorised by this Act);

Work No. 2. Sedimentation tanks in the said enclosure numbered 78 on the said map at a distance of $6\frac{1}{2}$ chains or thereabouts measured in an easterly direction from the building known as “ The Farm ”;

Work No. 3. An aqueduct or line or lines of pipes commencing at the said sedimentation tanks (Work No. 2 authorised by this Act) and terminating at the filters (Work No. 4 authorised by this Act);

Work No. 4. Filters in the enclosures numbered 78 and 116 on the said map at a distance of $18\frac{1}{2}$ chains or thereabouts measured in a south-westerly direction from Strensham Mill;

Work No. 5. An aqueduct or line or lines of pipes commencing at the said filters (Work No. 4 authorised by this Act) and terminating at the pumping station (Work No. 6 authorised by this Act) hereinafter described;

Work No. 6. A pumping station in the enclosure numbered 78 on the said map at a distance of 19 chains or thereabouts measured in a south-westerly direction from Strensham Mill;

Work No. 7. An aqueduct or line or lines of pipes commencing at the said pumping station (Work No. 6 authorised by this Act) and terminating by a junction with Work No. 16 authorised by the Act of 1939 on the east side of the enclosure numbered 117 on the said map at a distance of $12\frac{1}{2}$ chains or thereabouts measured in a southerly direction from Strensham Mill;

Work No. 8. A waste water conduit commencing at the said filters (Work No. 4 authorised by this Act) and terminating at the settling tank (Work No. 9 authorised by this Act) hereinafter described;

PART III.
—cont.

Work No. 9. A settling tank or tanks in the enclosure numbered 116 on the said map at a distance of $15\frac{1}{2}$ chains or thereabouts measured in a south-westerly direction from Strensham Mill;

Work No. 10. A waste water conduit commencing at the said settling tank (Work No. 9 authorised by this Act) and terminating by a junction with Work No. 14 authorised by the Act of 1939 on the east side of the enclosure numbered 117 on the said map at a distance of 12 chains or thereabouts measured in a southerly direction from Strensham Mill;

Work No. 11. An approach road (in this Act referred to as Approach Road No. 1) commencing in the roadway numbered 80 on the said map at a point 21 chains or thereabouts measured in a south-easterly direction from the building known as "The Farm" and terminating at the pumping station (Work No. 6 authorised by this Act);

Work No. 12. An approach road (in this Act referred to as Approach Road No. 2) commencing in the roadway numbered 80 on the said map at a point 15 chains or thereabouts measured in a southerly direction from the building known as "The Farm" and terminating at the sedimentation tanks (Work No. 2 authorised by this Act).

(2) In addition to the works hereinbefore described the Corporation may make and maintain—

- (a) upon any lands for the time being belonging to them all such buildings tanks machinery electric cables roads tramroads works and apparatus of whatever character; and
- (b) in or over any lands in or over which the Corporation have or obtain an easement all such machinery electric cables works and apparatus of whatever character and temporary roads and tramroads being machinery cables works apparatus roads and tramroads for the purposes of which they have or may obtain the easement;

as may be necessary or convenient in connection with or subsidiary to the said works or necessary for inspecting maintaining repairing cleansing managing working or using the same but nothing in this subsection shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

14. In the construction of the waterworks authorised by this Act the Corporation may deviate to any extent not exceeding the limits of deviation shown on the deposited plans (and where on any street or road no such limits are shown the boundaries of such street or road shall be deemed to be such limits) and they may also deviate from the levels shown on the deposited sections to any extent:

PART III.

—cont.

Power to deviate in construction of waterworks.

Provided that except for the purposes of crossing over a stream canal or railway no part of the aqueducts conduits or lines of pipes authorised by this Act shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

15. The provisions of section 24 (For protection of River Severn Catchment Board) of the Act of 1939 shall extend and apply to the works Nos. 11 and 12 by this Act authorised as if those works were included in the expression " authorised work " as defined in that section.

For protection of River Severn Catchment Board.

16.—(1) If the works authorised by this Act and shown on the deposited plans and sections are not completed by the thirty-first day of December nineteen hundred and fifty-four then subject to the provisions of subsection (2) of this section the powers granted by this Act for constructing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Period for completion of works and enlargement of works.

(2) The Corporation may extend enlarge alter reconstruct renew or remove any of the works and plant constructed under this Act and in the case of the Works Nos. 1 3 5 7 8 and 10 authorised by this Act lay down additional lines of pipes as and when occasion may require.

17. The Corporation shall relinquish Works Nos. 3 4 5 6 11 12 13 and 15 authorised by the Act of 1939 and described in section 10 (Power to make waterworks) of that Act and of so much of Works Nos. 10 14 and 16 described in the said section as are rendered unnecessary by the aqueducts Works Nos. 1 and 7 and the waste water conduit Work No. 10 authorised by this Act.

Relinquishment of works authorised by Act of 1939.

18. The time for completing the works authorised by the Act of 1939 (other than the works and parts of works which are to be relinquished under the powers of this Act) is hereby extended until the thirty-first day of December nineteen hundred and fifty-four.

Extension of time for completion of waterworks authorised by Act of 1939.

19. The works to be constructed by the Corporation under the authority of this Act shall for all purposes be deemed part of the water undertaking of the Corporation.

Works to form part of water undertaking.

PART III.

—cont.

As to
limitation of
abstraction of
water from
river Avon.

20.—(1) Notwithstanding anything contained in the Act of 1940 as amended by the Act of 1942 until the completion and putting into use of the first instalment referred to in section 22 (As to supply to local authorities) of the Act of 1939 of the aqueduct as defined in that section the Corporation shall not by means of the intake (Work No. 1) authorised by the Act of 1940 in any one day of twenty-four hours abstract collect impound take use divert or appropriate any greater quantity of water than the quantity mentioned in the second column of the following table if the flow of the river Avon immediately above the said intake on such day as measured by the flow recorders referred to in subsection (1) of section 16 (As to limitation of abstraction of water from river Avon) of the Act of 1942 is as mentioned in the first column of that table opposite the quantity so mentioned:—

Flow in river immediately above intake.	Maximum quantity to be abstracted.
Not exceeding two and a quarter million gallons.	One million gallons.
Exceeding two and a quarter million gallons but not exceeding five and three-quarter million gallons.	One and a half million gallons.
Exceeding five and three-quarter million gallons but not exceeding six million gallons.	One and three-quarter million gallons.
Exceeding six million gallons.	Two million gallons.

(2) On and after the completion and putting into use of the said first instalment the Corporation shall not by means of the said intake in any one day of twenty-four hours abstract collect impound take use divert or appropriate any greater quantity of water than the quantity mentioned in the second column of the table contained in subsection (2) of the said section 16 of the Act of 1942 if the flow of the river Avon immediately above the said intake on such day as measured by the said flow recorders is as mentioned in the first column of that table opposite the quantity so mentioned.

(3) Subsection (1) of section 15 (Restriction on taking of additional water from river Avon) of the Act of 1942 shall be read and have effect as if the words “and the Coventry Corporation Act 1948” were inserted in the said subsection after the words “as amended by this Act.”

PART IV.

HEATING UNDERTAKING.

21.—(1) The Corporation may supply heat by means of hot water or steam to any premises in the city as constituted at the date of the passing of this Act upon and subject to such terms and conditions as may be agreed between the Corporation and the owners or occupiers of those premises:

Provided that in the exercise of the powers of this section the Corporation shall not show undue preference to any person and shall not exercise any undue discrimination against any person.

(2) Before the Corporation enter into an agreement with the occupier of any premises for the supply of heat to such premises they shall give notice thereof to the owner of the premises and in the event of the supply of heat to such premises being discontinued notice shall be given by the Corporation to the owner of such premises.

22.—(1) Subject to the provisions of this Part of this Act the Corporation may—

- (a) on lands in the city belonging or leased to them; and
- (b) where they enter into any agreement under the section of this Act of which the marginal note is "Power to buy heat in bulk" also on in or under any lands in respect of which provision is made by such agreement for the exercise of rights for the purpose;

erect lay down maintain work and use stations boiler-houses mains pipes and other works for providing storing transmitting and distributing heat by means of hot water or steam for the purposes of this Part of this Act and for producing any material product matter or thing arising or used in the process of such provision of hot water or steam including the generation of electricity together with such buildings boilers engines machinery sidings matters and things of whatever description as may be required by the Corporation to enable them to provide store transmit and distribute heat by means of hot water or steam for such purposes and the Corporation may accordingly on those lands provide store transmit and distribute heat by means of hot water or steam and may produce such materials products matters and things:

Provided that nothing in this section shall be taken to dispense with the consent of any government department to any use of any lands of the Corporation in any case in which such consent would have been required if this section had not been enacted.

PART IV.
—cont.41 & 42 Vict.
c. 76.

(2) Any electrical works or apparatus erected laid down maintained worked and used in pursuance of subsection (1) of this section shall be so constructed maintained worked and used as to prevent interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

(3) Any electricity generated by the Corporation as aforesaid may be sold to—

(a) the authority; or

(b) with approval of the authority the board;

and any electricity so generated and not so sold as aforesaid may only be used for or in connection with the supply of heat under the powers of this Part of this Act at the works at which it is generated or (with the consent of the authority and the board) elsewhere.

As to
construction
of station for
providing
heat.

23.—(1) If the Corporation shall resolve to construct extend modify or enlarge a station for providing heat under the powers of this Part of this Act the Corporation shall forthwith give to the Minister of Fuel and Power and the authority notice of such resolution together with such information with regard to such station as the authority may within six weeks of the service of such notice reasonably require including information as to the nature position and capacity of the proposed station (but not details of design) the proposed method of producing heat thereat the area proposed to be supplied therefrom and an estimate of the quantity or quantities of heat required by the Corporation for the purposes of the heating undertaking and of the times and form at and in which such quantity or quantities will be required Any dispute between the Corporation and the authority as to whether any information is reasonably required by the authority under this subsection shall be referred to and determined by the Minister of Fuel and Power.

(2) Within three months after the service of the said notice or the receipt of such information (whichever is the later) the authority may serve upon the Corporation a counter-notice offering a supply of heat to them upon such terms and conditions as may be specified in the counter-notice or as may be agreed between the Corporation and the authority.

(3) If within three months after the receipt of such counter-notice or such longer period as may be agreed between the Corporation and the authority the terms and conditions upon which a supply of heat is to be given to the Corporation by the authority for the purposes of the heating undertaking

are not agreed between them the Corporation shall submit to the Minister of Health for determination the question whether a supply of heat shall be afforded to the Corporation by the authority and in that event the terms and conditions upon which such a supply is to be afforded.

(4) If the Minister of Health determines that a supply of heat shall be afforded to the Corporation by the authority the authority shall afford such a supply in accordance with terms and conditions approved by the Minister of Health:

Provided that if the Minister of Health makes a substantial alteration in the terms or conditions on which the authority offered a supply of heat to the Corporation then if within twenty-eight days after the receipt of the determination of the Minister of Health the authority give notice in writing to the Minister of Health and the Corporation that the said terms or conditions are not acceptable they shall not be required to afford a supply of heat to the Corporation and the Corporation shall be entitled to proceed with their proposals as if this section had not been enacted unless within twenty-eight days of such last-mentioned notice the Corporation serve on the authority a notice requiring a supply in which case the authority shall afford a supply on the terms and conditions specified in the counter-notice referred to in subsection (2) of this section.

(5) (a) If the said station is constructed by the Corporation they shall supply and the authority shall take all the electricity generated thereat which is not—

- (i) required for or in connection with the supply of heat;
or
- (ii) supplied with the approval of the authority to the board;

upon such terms and conditions as may be agreed between the Corporation and the authority or in default of agreement determined by arbitration as hereinafter provided on the basis of a supply by a willing seller to a willing buyer.

(b) Any matter to be determined by arbitration under this subsection shall be referred to and determined by an arbitrator to be agreed upon between the Corporation and the authority or in default of agreement to be appointed by the President of the Institution of Electrical Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such reference and determination.

24.—(1) The provisions of Part V (Power to lay mains) and Part VI (Breaking open streets &c.) and section 93 (Protection for works of navigation authorities and for catchment boards and railways) of the Third Schedule to the

Power to lay
mains &c. and
break open
streets.

PART IV.
—cont.

Water Act 1945 except paragraph (b) of subsection (1) of section 19 of that schedule and the proviso to that subsection are hereby incorporated with this Part of this Act.

(2) For the purposes of this Part of this Act in the construction of the enactments incorporated by this section—

“ the undertakers ” means the Corporation;

“ supplying water ” means supplying heat by means of hot water or steam and “ supply of water ” shall be construed accordingly;

“ service pipe ” means a pipe for supplying heat by means of hot water or steam from a main to any premises; and

“ the limits of supply ” means the city as constituted at the date of the passing of this Act.

Application of powers &c. of Act of 1936 to Corporation.

25. For the purposes of this Part of this Act the Corporation shall have the like powers and duties and be subject to the like restrictions as a local authority who supply water under the Act of 1936 have and are subject to under sections 119 and 333 of that Act with respect to the laying and maintenance of water mains and for that purpose the mains and pipes for supplying heat by means of hot water or steam shall be deemed to be water mains:

Provided that the provisions of section 333 of the Act of 1936 shall extend and apply with respect to the execution of any works under the powers of this section in on or over any lands held or used by the commission for the purposes of their undertaking.

Confirmation of works constructed before passing of this Act.

26. The construction by the Corporation before the date of the passing of this Act of any mains pipes or other works for the purposes mentioned in the section of this Act of which the marginal note is “ Works for provision of heat ” is hereby sanctioned and confirmed and such mains pipes and works shall be deemed always to have formed part of the heating undertaking.

Consultation with authority and board as to certain works.

27.—(1) Before the Corporation—

(a) apply to the appropriate sanctioning authority for consent to the borrowing of money for the purpose of constructing laying down or executing any works for providing storing transmitting or distributing heat under the powers of this Part of this Act; or

(b) lay down any main under the provisions of this Part of this Act other than a main extending for a distance of not more than two hundred yards from any

main laid down in accordance with proposals previously made under this section;

they shall give to the Minister and to the authority and the board notice of their proposals and such information with regard thereto as the authority or the board may within six weeks of the receipt of such notice reasonably require and shall consult with the authority and the board on such proposals. Any dispute between the Corporation and the authority or the board as to whether any information is reasonably required by the authority or the board under this subsection shall be referred to and determined by the Minister.

(2) Without prejudice to the generality of subsection (1) of this section such information shall include particulars of the proposals (if any) of the Corporation as to the measures to be taken with respect to—

- (a) the securing of the safety of the mains pipes and apparatus of the authority and the board from damage or injury arising directly or indirectly from any mains or pipes to be laid down or placed by the Corporation under the powers of this Part of this Act;
- (b) the insulation of any such last-mentioned mains or pipes so as to prevent the escape of heat therefrom;
- (c) the maximum and minimum temperatures and pressures at which heat may be stored transmitted and distributed by the Corporation;
- (d) the methods for measuring the volume temperature and pressure of the heat so stored transmitted or distributed; and
- (e) the independent testing of such measurements.

(3) The authority and the board or either of them may within three months after the receipt of such notice or the receipt of such information (whichever is the later) make representations to the Minister with respect to such proposals.

(4) If no such representations are made the Corporation shall not proceed except in accordance with the proposals sent to the authority and the board or any alteration thereof which may be agreed.

(5) If any such representations are made the Corporation shall not proceed with their proposals except with the approval of the Minister and in accordance with any modification of such proposals which the Minister may require.

PART IV.
—cont.

(6) The provisions of this section shall not apply to the construction extension modification or enlargement of a station for providing heat under the powers of this Part of this Act.

(7) In and for the purposes of this section “ the Minister ” means the Minister of Fuel and Power.

Power to
supply fittings.

28.—(1) In any premises in which the Corporation supply or propose to supply heat by means of hot water or steam they may provide (but not manufacture) and may supply by way either of sale or hire any such radiators pipes apparatus meters and fittings (in this Part of this Act called “ fittings ”) as may be required for or in connection with the utilisation of the heat so supplied and may instal repair or alter any such fittings whether supplied by them or not and may provide any materials and do any work required in connection with such installation repair or alteration.

(2) The Corporation may make such charges as may be agreed or in default of agreement as may be reasonable for any fittings supplied or any materials provided or work done under this section at the request of the owner or occupier of the premises supplied and where the amount does not exceed twenty pounds such charges may be recovered summarily as a civil debt.

(3) Any fittings let by the Corporation for hire and marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof—

(a) shall not be subject to distress or to the landlord’s remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the person in whose possession the same may be; and

(b) shall notwithstanding that they be fixed or fastened to any part of the premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and (subject to the provisions of the Hire Purchase Act 1938) removable by the Corporation:

I & 2 Geo. 6.
c. 53.

Provided that nothing in this subsection shall affect the valuation for rating of any rateable hereditament.

(4) All fittings supplied by the Corporation under any hire purchase agreement shall until payment of the final instalment of the purchase money for such fittings be deemed for the purposes of subsection (3) of this section to be fittings let for hire by the Corporation.

(5) (a) The Corporation shall so adjust the charges to be made by them under this section as to meet any expenditure by them thereunder including interest upon any moneys borrowed for the purposes thereof and any sums necessary to provide for the repayment of moneys so borrowed.

(b) The total sums expended and received by the Corporation in connection with the purposes of this section in any year including interest and any sums necessary to provide for the repayment of moneys so borrowed shall be separately shown in the published accounts of the Corporation for that year.

(6) If any person wilfully or negligently injures or suffers to be injured any fittings belonging to the Corporation he shall be liable to a penalty not exceeding five pounds and the Corporation may do all such work as is necessary for repairing any injury done and may recover the expenses reasonably incurred by them in so doing from the offender and if the amount does not exceed twenty pounds summarily as a civil debt.

29.—(1) If any person either—

- (a) wilfully and without the consent of the Corporation;
or
- (b) negligently;

Interference
with
apparatus &c.

turns on opens closes shuts off or otherwise interferes with any valve cock or other work or apparatus belonging to the Corporation and thereby causes the supply of heat hot water or steam for the purposes of the heating undertaking to be interfered with he shall be liable to a fine not exceeding five pounds and (whether proceedings are taken against him in respect of his offence or not) the Corporation may recover from him the amount of any damages sustained by them and if such amount does not exceed twenty pounds the same may be recovered summarily as a civil debt.

(2) If any person wrongfully takes uses or diverts any heat hot water or steam from any apparatus provided for the purposes of the heating undertaking he shall (without prejudice to any other right or remedy of the Corporation) be liable to a fine not exceeding five pounds.

30.—(1) The Corporation may from time to time prescribe a scale of charges (in this section called "heating charges") for heat supplied to premises under the powers of this Part of this Act and for connecting premises to the heating undertaking and (where premises have been disconnected from the said undertaking) for re-connecting premises thereto and where heat is so supplied to any premises the heating charges in

Collection and
recovery of
heating
charges.

PART IV.
—cont.

accordance with the scale shall be payable by the occupier of those premises except in any case where the owner has agreed with the Corporation to pay the same in which case they shall be payable by the owner.

(2) The heating charges payable by any person may after a demand therefor be recovered from him by the Corporation either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt and subject as hereinafter provided where as a person fails to pay within seven days after a demand therefor any instalment of a heating charge payable by him in respect of any premises the Corporation may cut off the supply of heat to the premises and recover the expenses reasonably incurred by them in so doing in the same manner as the instalment due:

Provided that if before the expiration of the said seven days notice in writing is given to them that there is a dispute as to the amount due in respect of the heating charge or as to the liability to pay the charge they shall not cut off the supply of heat until the dispute has on the application of either party been determined by a court of competent jurisdiction.

(3) Without prejudice to any other method of recovery any heating charges payable by the tenant of any premises belonging to the Corporation connected as aforesaid may be recovered as rent due from him.

Power to enter
premises.

31.—(1) Subject to the provisions of this section any authorised officer of the Corporation shall on producing if so required some duly authenticated document showing his authority have a right to enter at all reasonable hours any premises to which the Corporation are supplying or have agreed to supply heat under the powers of this Part of this Act or any premises upon which any fittings have been installed for the purpose of or in connection with supplying heat to any premises as aforesaid—

- (a) for the purpose of inspecting and examining any fittings required for the purposes of this Part of this Act whether belonging to the Corporation or not;
- (b) for the purpose of ascertaining whether there is or has been on or in connection with the premises any contravention of the provisions of this Part of this Act;
- (c) for the purpose of ascertaining whether or not circumstances exist which would authorise the Corporation to take any action or execute any work under this Part of this Act;

- (d) for the purpose of taking any action or executing any work authorised or required by this Part of this Act to be taken or executed by the Corporation:

Provided that admission to any premises not being a factory or workplace shall not be demanded as of right unless twenty-four hours' notice of the intended entry has been given to the occupier:

Provided also that nothing in this section shall authorise any officer of the Corporation without the previous consent in writing of any electricity board established under the Electricity Act 1947 to enter any premises occupied or used by such board in connection with the generation or supply of electricity other than offices and showrooms. 10 & 11 Geo. 6. c. 54.

(2) If it is shown to the satisfaction of a justice of the peace on sworn information in writing—

- (a) that admission to any premises has been refused or that refusal is apprehended or that the premises are unoccupied or that the occupier is temporarily absent or that the case is one of urgency or that an application for admission would defeat the object of the entry; and

- (b) that there is reasonable ground for entry into the premises for any such purpose as aforesaid;

the justice may by warrant under his hand authorise the Corporation by any authorised officer to enter the premises if need be by force:

Provided that such a warrant shall not be issued unless the justice is satisfied either that notice of the intention to apply for a warrant has been given to the occupier or that the premises are unoccupied or that the occupier is temporarily absent or that the case is one of urgency or that the giving of such notice would defeat the object of the entry.

(3) An authorised officer entering any premises by virtue of this section or of a warrant issued thereunder may take with him such other persons as may be necessary and on leaving any unoccupied premises which he has entered by virtue of such a warrant shall leave them as effectually secured against trespassers as he found them.

(4) Every warrant granted under this section shall continue in force until the purpose for which the entry is necessary has been satisfied.

(5) If any person who in compliance with the provisions of this section or of a warrant issued thereunder is admitted into a factory or workplace discloses to any person any

PART IV.
—cont.

information obtained by him in the factory or workplace with regard to any manufacturing process or trade secret he shall unless such disclosure was made in the performance of his duty be liable to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months.

Power to buy
heat in bulk.

32.—(1) The Corporation may enter into and carry into effect agreements with any persons competent to supply heat or hot water or steam for the furnishing to the Corporation by such persons of a supply of heat by means of hot water or steam for the purposes of this Part of this Act and any such agreement may provide for the provision by the Corporation or for the joint user by them and any other party to the agreement of any works plant materials or things required for the purposes of the agreement.

(2) The Corporation may for the said purposes also enter into and carry into effect agreements for the taking and use of waste heat hot water or steam from any generating station and any authority entitled to give any such supply may enter into such an agreement.

Reports and
returns with
respect to
heating
undertaking
and supply
of heat.

33.—(1) The Corporation shall give to the authority and the board such reports and returns and such information with respect to the heating undertaking as the authority or the board may reasonably require and the authority shall give to the Corporation such reports and returns and such information with respect to any supply by them of heat by means of hot water or steam as the Corporation may reasonably require.

(2) Any dispute between the Corporation on the one hand and the authority or the board on the other hand as to whether any reports returns or information are reasonably required by the authority or the board or the Corporation (as the case may be) shall be determined by the Minister of Fuel and Power.

Power to
require deposit
as security
for payment
of accounts.

34. The Corporation may require any person desiring to take a supply of heat by means of hot water or steam or to be supplied with fittings or materials under this Part of this Act to deposit with the Corporation such sum as the Corporation may reasonably require as security for the payment of any moneys which may become due from him to the Corporation in respect of such supply or of any fittings or materials supplied to him in connection therewith.

Discounts for
prompt
payment.

35. The Corporation may if they think fit make an allowance by way of discount on all sums of money due to them for the supply of heat by means of hot water or steam from

any person who pays the same within such time of the demand thereof as the Corporation think fit to prescribe in that behalf and notice to that effect shall (if and so long as the Corporation shall allow such discount) be endorsed on every demand note in respect of such charges:

Provided that the Corporation shall make the same allowance to all persons under similar conditions.

36.—(1) If the occupier of any premises supplied with heat by means of hot water or steam by the Corporation quits the premises without giving notice thereof to the Corporation in manner provided by this section he shall be liable to pay to the Corporation all money accruing due for heat supplied by them to the premises and for meter rent up to the next date on which the register of the meter for heating on the premises is usually ascertained or the date from which any subsequent occupier of the premises requires the Corporation to supply heat to the premises whichever first occurs.

Notice to be given by persons supplied with heat before quitting premises.

(2) The notice to be given under this section by an occupier of premises shall be given in writing and sent by registered post or otherwise delivered to the Corporation at the council house so that it is received by the Corporation at least twenty-four hours before he quits the premises.

(3) The foregoing provisions of this section or a statement of the effect thereof shall be endorsed upon every demand note for heat charges payable to the Corporation.

37. Sections 132 (Accounts) 133 (Reserve funds) and 134 (Application of revenue and payment of expenses of undertakings) of the Act of 1927 shall apply to the heating undertaking as if it were referred to in those sections.

Financial provisions.

38. For the protection of the authority and the board (each of whom is in this section referred to as "the electricity board") the following provisions shall unless otherwise agreed in writing between the Corporation and the electricity board apply and have effect:—

For protection of electricity boards.

(1) In this section—

the expression "apparatus" means any electric lines or works (as respectively defined in the Electric Lighting Act 1882) belonging to the electricity board;

45 & 46 Vict. c. 56.

the expression "authorised work" means any main service pipe conduit duct or other work laid down placed or executed by the Corporation for

PART IV.
—cont.

the purpose of the heating undertaking in the exercise of the powers of this Part of this Act or any Act incorporated therewith:

- (2) Where the Corporation require to dig or sink any trench for laying down placing or constructing any authorised work near to which any apparatus has been lawfully placed the Corporation shall give to the electricity board to whom such apparatus belongs notice in writing of such requirement together with plans sections and particulars of the authorised work to be laid in such trench and if it should appear to the electricity board that the laying down placing or construction of such authorised work would injure interfere with or endanger any apparatus or interfere with the access thereto or impede the supply of electricity by means thereof the electricity board may within fourteen days from the receipt of such notice give to the Corporation notice in writing requiring them to alter the position or depth of such apparatus in such manner as may be reasonably necessary for avoiding any such injury interference danger or impediment and any difference as to the necessity for such alteration or the manner of carrying out the alteration shall be determined by arbitration as hereinafter provided ' All such alterations shall (save as in this section provided) be carried out by and at the expense of the Corporation with as little detriment and inconvenience to the electricity board as the circumstances will admit and to the reasonable satisfaction of the engineer of the electricity board and under his superintendence unless after receiving not less than three days' notice for that purpose (which notice the Corporation are hereby required to give except in cases of emergency) he refuses or neglects to give such superintendence at the time specified in the notice for the commencement of such work or discontinues the same during the laying down placing or construction of such work:
- (3) The Corporation in laying down placing or constructing any authorised work shall not interfere with the access to any apparatus to any greater extent than is necessary for the purpose of or in connection with the carrying out of that work and shall not remove or displace any apparatus or do anything to endanger any apparatus or impede the passage of electricity into or through any apparatus without the consent (which shall not be unreasonably refused) of the electricity board or in any other manner than the

electricity board shall reasonably approve nor in the case of apparatus proposed to be removed or displaced until good and sufficient apparatus and other works reasonably necessary or proper for continuing the supply of electricity as the same was supplied by the apparatus proposed to be removed or displaced shall at the expense of the Corporation have been first made and laid down in lieu thereof and be ready for use to the reasonable satisfaction of the engineer of the electricity board:

- (4) If the electricity board shall desire to alter the position or depth of any apparatus under subsection (2) of this section or to provide any substituted apparatus referred to in subsection (3) thereof and shall within the period of fourteen days referred to in subsection (2) of this section give not less than seven days' notice in writing thereof to the Corporation the electricity board may themselves carry out any of the said works and shall commence execute and complete the same with all reasonable dispatch and to the reasonable satisfaction of the Corporation and all reasonable expenses properly incurred by them under this subsection shall be repaid to them by the Corporation:
- (5) The reasonable expense of all repairs or renewals of—
 - (i) any apparatus existing at the time of the laying down placing or construction of the authorised work; or
 - (ii) any apparatus substituted for such existing apparatus or any part thereof and being of reasonably similar size and type which may at any time hereafter be rendered reasonably necessary by reason of—
 - (a) the acts or defaults of the Corporation their contractors agents workmen or servants or any person in the employ of them or any of them in the exercise of the powers of this Part of this Act; or
 - (b) any subsidence resulting from the laying down placing construction or removal of any authorised work whether during the laying down placing construction or removal of the authorised work or at any time within two years thereafter;
 shall be borne and paid by the Corporation:

PART IV.
—cont.

- (6) The Corporation in laying down placing constructing or removing any authorised work shall make good all damage done by them to any apparatus and shall make compensation to the electricity board for any loss damage costs or expenses which they may sustain by reason of any interference with such apparatus or the access thereto or with the private service or supply lines of any person supplied by the electricity board with electricity:
- (7) If any difference shall arise between the Corporation and the electricity board or their respective engineers with respect to any matter under this section the matter in difference shall be referred to a single arbitrator to be agreed upon between the parties or failing agreement to be appointed by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to the arbitration:
- (8) In settling any question under this section the arbitrator shall have regard to any duties or obligations which the electricity board may be under in respect of their apparatus and any duties or obligations which the Corporation may be under in respect of the authorised work and may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid as far as may be reasonably possible interference with any purpose for which the apparatus is used.

Corporation
not to be
exempted
from
proceedings
for nuisance.

39. Nothing in this Part of this Act shall exonerate the Corporation from any indictment action or other proceedings for nuisance in the event of any nuisance being caused or permitted by them.

Heating
undertaking to
be a statutory
undertaking
under Town and
Country
Planning Acts
1944 and 1947.
7 & 8 Geo. 6.
c. 47.

40. The provisions of the Town and Country Planning Acts 1944 and 1947 shall where applicable apply to the heating undertaking as if that undertaking were a statutory undertaking and as if the Minister of Health were the "appropriate Minister" within the meaning of section 119 of the Town and Country Planning Act 1947.

Inquiries by
Ministers.

41. The Minister of Health and the Minister of Fuel and Power may hold such inquiries as they may consider necessary in regard to the exercise of any powers conferred upon them or the giving of consents under this Part of this Act and section 290 (Power of government departments to direct inquiries) of the Act of 1933 shall apply accordingly.

PART V.

STREETS BUILDINGS SEWERS AND DRAINS

42. If the Corporation execute any works under the provisions of the Private Street Works Act 1892 in respect of any street or part of a street in the city they may without prejudice to their rights under that Act recover the expenses of such works from the person who shall have been required to carry out any of the works referred to in section 6 (No buildings to be erected until street formed) of the Act of 1942 or failing any such requirement from the person who shall have defined the street or part thereof as required by section 5 (No building allowed until street defined) of the last-mentioned Act and such expenses shall be recoverable in like manner as expenses recoverable under the said Act of 1892 from the owners of the premises affected. Provided that if the Corporation shall recover such expenses under the powers of this section in respect of any premises their rights under the said Act of 1892 shall cease in regard to those premises.

As to recovery of private street works expenses.
55 & 56 Vict. c. 57.

43.—(1) The owner of every house fronting adjoining or abutting on a highway which is not repairable by the inhabitants at large shall maintain the footpath on the frontage of such house and the approach to such house from the highway in accordance with the reasonable requirements of the Corporation. Provided that nothing in this section shall authorise the Corporation to make any requirement with regard to the maintenance of any such footpath or approach as is within the curtilage of a house.

Maintenance of footpaths &c.

(2) Any person who contravenes the provisions of this section after receiving notice from the Corporation shall be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding one pound.

44.—(1) In this section "neglected site" means the site of a demolished partly demolished or ruinous building in the city which is in such a condition as to be prejudicial to the property in or the inhabitants of the neighbourhood.

As to neglected sites.

(2) The Corporation may by notice require the owner of any neglected site to execute such work as may be necessary—

(a) in the case of a demolished building to remove from the site any material or rubbish; and

(b) in the case of a partly demolished or ruinous building to complete the demolition of the building and remove from the site any material or rubbish;

within a reasonable time to be specified in the notice.

PART V.
—cont.

(3) If the owner of the site fails to execute the work specified in the notice within the time specified therein the Corporation may enter upon the neglected site and execute the work and may sell or dispose of any material or rubbish found on the neglected site.

(4) All expenses incurred by the Corporation under subsection (3) of this section may be recovered by the Corporation from the owner of the neglected site.

Power to order
alteration of
chimneys.

45. It shall be lawful for a court of summary jurisdiction upon complaint by the Corporation in pursuance of a report by the medical officer or the sanitary inspector that any smoke gas or vapour from any chimney flue or pipe of any building or structure forming part of or in proximity to a dwelling-house is a nuisance to any of the inhabitants of the city to make an order requiring the owner of such chimney flue or pipe within such time as shall be specified in such order to cause the same to be raised or such other means for preventing or mitigating such nuisance to be adopted as may seem fitting to such court and as shall not involve an expenditure exceeding twenty pounds and any such owner as aforesaid who shall neglect or refuse to obey such order shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Further
powers with
regard to land
for
development.
26 Geo. 5. &
1 Edw. 8.
c. 51.

46.—(1) In order to secure the completion of development of any description in the city approved by the council or any committee of the council under any statutory power relating to town and country planning the Corporation may put into force the provisions of section 36 (Purchase of land for purposes of redevelopment) of the Housing Act 1936 with respect to the purchase of land as if such development were a purpose of the said section 36 Provided that the provisions of the said section 36 shall not be put into force in the case of any land unless the Corporation are satisfied that the person undertaking such development has been unable to acquire the land required at a reasonable price.

(2) The Corporation may sell or let on lease any land purchased in pursuance of the powers of this section to the person undertaking such development or exchange such land for other land of such person.

Amendment
of section 52
of Act of
1900.

47. Section 52 (Owners &c. to permit application of test to drains) of the Act of 1900 shall be read and have effect as if the word "drains" in the said section included sanitary conveniences private sewers and cesspools.

48. Notwithstanding anything contained in subsection (9) of section 51 (Apportionment to frontagers of expenses of sewer constructed under public highway) of the Coventry Corporation Act 1936 where a resolution has been passed under subsection (1) of that section before the first day of September nineteen hundred and thirty-nine but by reason of any circumstances directly or indirectly attributable to war it has not been possible to complete any sewer to which the resolution relates within two years from the date when the resolution became operative the provisions of the said subsection (9) shall not have effect until after the expiration of twelve months after the date of the passing of this Act.

PART V.
—cont.

Amendment
of section 51
of Coventry
Corporation
Act 1936.
26 Geo. 5. &
1 Edw. 8.
c. cix.

49. Section 24 (Power of local authority to recover cost of maintaining certain lengths of public sewers) of the Act of 1936 shall within the city have effect as if the following were substituted for the proviso to subsection (1) of that section:—

Recovery of
cost of
maintaining
sewers.

“ Provided that unless in the opinion of the medical officer of health the surveyor or any sanitary inspector immediate action is necessary notice of the work proposed to be undertaken shall be given to the owners of any premises known by the local authority to be served by the length of sewer in question not less than seven days before the work is commenced and the local authority shall consider any representations as to the need for and reasonableness of the proposed work which may be made to them by any of those owners within seven days of the service of the notice.”

50. Where under a town planning scheme approved by the Local Government Board or by the Minister or a development plan approved by the Minister of Town and Country Planning unbuilt-on land is to be used for the construction or widening of a street or road such land shall be deemed to be a street and land dedicated to public use for the purpose of the exercise by the Corporation of their powers relating to the construction maintenance and use of sewers and of gas and water mains pipes lines conduits service pipes and other works and the Corporation may exercise such powers in and upon such land as if it were a street:

Construction
of sewers and
mains in
proposed
streets.

Provided that—

- (i) before exercising the powers of this section in any land the Corporation shall give reasonable notice to the owners thereof;
- (ii) the Corporation shall pay compensation to the owners of and other persons interested in such land.

PART VI.

NUISANCES AND SANITARY MATTERS.

Prohibition of
smoke in
certain areas.

51.—(I) In this section—

“ the central area ” means the area in the city which is bounded by the outer edge of the red line shown on the map dated the nineteenth day of November nineteen hundred and forty-seven signed in triplicate by the mayor of the city one of which has been deposited in the office of the Clerk of the Parliaments House of Lords one in the Committee and Private Bill Office of the House of Commons and one with the town clerk at the council house in the city;

“ smoke ” includes soot ash grit and gritty particles.

(2) As from the commencement of this section no smoke shall be emitted from any premises in the central area.

(3) The occupier of any premises in the central area from which smoke is emitted shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds.

(4) (a) After the commencement of this section in relation to the central area the foregoing provisions of this section may by order made by the Corporation and confirmed by the Minister be extended and applied to any area or areas within the city which may be prescribed in such order.

(b) Before submitting an order under this subsection to the Minister the Corporation shall publish in the London Gazette and in one or more local newspapers circulating in the city a notice—

- (i) stating that such an order has been made and is about to be submitted to the Minister for confirmation;
- (ii) stating the general effect of the order;
- (iii) describing the area or areas to which the order applies; and
- (iv) stating that within the period of twenty-eight days after a date named in the notice not being earlier than the first publication thereof any person may object to the confirmation of the order by giving notice in writing to the Minister and sending a copy of such notice to the town clerk.

(c) If no objection is duly made or if all objections so made are withdrawn then the Minister may if he thinks fit confirm the order with or without modification but in any other case he shall before confirming the order cause a local inquiry to be held and shall consider any objection not withdrawn and the report of the person who held the inquiry and may then confirm the order either with or without modification.

(5) The Corporation shall compile and keep a register of the name and address of every person owning or occupying premises in the city but beyond the central area who at any time after the passing of this Act shall by notice in writing to the town clerk request the Corporation to serve upon the person making such request a copy of any notice published in pursuance of paragraph (b) of subsection (4) of this section and the Corporation shall serve upon every such person at the address entered in the said register a copy of any such notice as relates to an order affecting premises owned or occupied by any such person. Provided that the omission to serve a copy of any such last-mentioned notice on one or more of the persons (not being the whole number of such persons affected by any particular order) hereinbefore referred to shall not invalidate or prejudice any order made by the Corporation under paragraph (a) of the said subsection or the confirmation of such order by the Minister. Every notice served upon the Corporation by any person under this subsection shall state his name and address and shall specify the property within the city beyond the central area of which such person is owner or occupier.

(6) An order made under subsection (4) of this section may—

(a) in relation to any premises specified in the order—

(i) provide that the premises shall be excluded from the area;

(ii) provide that the operation of the order in respect of the premises shall be deferred for such period as may be specified;

(b) provide that the operation of the order in respect of premises used for any of the following processes shall be deferred for such period as may be specified or indefinitely:—

(i) the working of a mine;

(ii) the smelting of ores and minerals;

(iii) the calcining puddling and rolling of iron and other metals;

(iv) the conversion of pig iron into wrought iron or the reheating annealing hardening forging converting and carburising of iron and other metals; and

(v) the generation of electricity:

Provided that no premises shall be excluded from the operation of the order on the ground that they are used for any of the said processes unless the Minister is satisfied that the inclusion of the premises within the operation of the order would obstruct or interfere with any such processes.

PART VI.
—cont.

(7) An order made under this section shall come into operation on but not until such date as may be specified in the order which shall be not less than six months after the date of the first publication of the notice of the confirmation of the order.

(8) So soon as may be after an order made under this section has been confirmed by the Minister the Corporation shall publish in one or more local newspapers circulating in the city a notice stating that the order has been confirmed and naming a place where a copy of the order as confirmed may be seen at all reasonable hours and shall serve a like notice on every person who having given notice to the Minister of his objection to the order appeared at the local inquiry in support of his objection.

(9) A copy of a newspaper containing a notice published in pursuance of this section shall be sufficient evidence of the publication of the notice.

(10) An order made under this section may contain such provisions as the Minister may think expedient—

- (a) for enabling the lessee or tenant of any premises within the area to which the order relates who has to incur expense in executing works or providing altering or adapting any fixtures fittings or appliances for the purpose of complying with the order and the owner of such premises to enter into and fulfil agreements making such variations of the terms of the lease or tenancy of the premises as may be reasonable having regard to the expense to be incurred and to other relevant circumstances; and
- (b) for enabling any such lessee or tenant who has been unable to make an agreement with the owner thereof under paragraph (a) of this subsection to apply to the county court for an order making such variations of the terms of the lease or tenancy of the premises as aforesaid and for enabling the court to make such an order.

(11) An order made under this section may be varied or revoked by another order made by the Corporation and confirmed by the Minister.

(12) Where proceedings are brought by virtue of this section or of the provisions of an order made under this section in respect of smoke emitted from a furnace for steam raising or any manufacturing or trade purpose in any premises in the central area or in any area prescribed in any such order it shall be a defence for the occupier of the premises

in which such furnace is installed (being the defendant in such proceedings) to prove that such furnace is a furnace which is so far as practicable capable of being operated continuously without emitting smoke and has been properly maintained and used and has been carefully attended to by the person having the charge thereof.

(13) Nothing in this section or in an order made thereunder shall apply to smoke emitted from a railway locomotive.

(14) Subsections (2) to (5) of section two hundred and ninety of the Act of 1933 (which relate to the giving of evidence at and defraying the costs of local inquiries) shall apply to a local inquiry held in pursuance of this section as they apply to the local inquiries mentioned in subsection (1) of the said section two hundred and ninety.

(15) The Corporation may if they think fit contribute the whole or part of the expense necessarily incurred by any person in executing works or in providing altering or adapting any fixtures fittings or appliances for the purpose of complying with—

(a) the provisions of subsection (2) of this section; or

(b) the provisions of any order made by the Corporation and confirmed by the Minister under this section.

52.—(1) No person shall instal in any building in the city whether erected before or after the passing of this Act any furnace for steam raising or for any manufacturing or trade purpose unless such furnace is so far as practicable capable of being operated continuously without emitting smoke.

Prevention of
smoke from
industrial
furnaces.

(2) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding ten pounds and any person who after conviction of an offence of installing a furnace in contravention of those provisions uses that furnace shall unless it has been amended so as to comply with those provisions be liable to a penalty not exceeding two pounds for each day on which he so uses the furnace.

(3) If a person before installing in a building in the city a furnace to which this section applies submits to the Corporation plans proposals and particulars of the proposed furnace and furnishes them with such other necessary information in regard thereto as they may require the Corporation shall within a period of six weeks from the date upon which such plans proposals particulars and information are received by them serve a notice upon such person stating whether or not they are satisfied that the furnace is so far as practicable capable of being operated continuously without emitting smoke and if they are so satisfied or if they do not serve a notice upon

PART VI.
—cont.

such person before the expiration of the said period of six weeks no proceedings shall be taken against him under this section in respect of the installation of that furnace in accordance with the plans proposals particulars and information so submitted and furnished.

(4) Before serving a notice under this section stating that they are not satisfied that the furnace is so far as practicable capable of being operated continuously without emitting smoke the Corporation shall consult with the Minister of Fuel and Power.

(5) In determining for the purposes of this section whether a furnace is so far as practicable capable of being operated continuously without emitting smoke the Corporation or a court shall if either of the parties so desire have regard to cost and to local conditions and circumstances.

Prohibition
on sale of
verminous
articles.

53.—(1) No dealer shall sell or expose for sale any furniture mattress bed-linen clothing or similar article (in this section called “ article ”) if the same is to his knowledge infested with bugs or other vermin or if by taking reasonable precautions he could have known the same to be so infested.

(2) If a dealer contravenes the provisions of this section he shall be liable to a penalty not exceeding five pounds and the Corporation upon a certificate of the medical officer or the sanitary inspector may remove any such verminous article and cause the same to be cleansed purified disinfected or destroyed as the case may require and may recover the cost of so doing from such dealer.

(3) For the purposes of this section “ dealer ” means any person who trades or deals in any of the articles referred to in this section.

Cleansing of
filthy or
verminous
premises.

54. Section 83 (Cleansing of filthy or verminous premises) of the Act of 1936 shall within the city have effect as if the following were substituted for subsection (1) of that section:—

“ (1) Where the local authority upon consideration of an official representation or a report from any of their officers or other information in the possession of the local authority are satisfied that any premises—

(a) are in such a filthy or unwholesome condition as to be prejudicial to health; or

(b) are verminous;

the local authority shall give notice to the owner or occupier of the premises requiring him to take such steps as may be specified in the notice to remedy the condition of the premises—

(i) by cleansing and disinfecting them;

(ii) by distempering or whitewashing the interior surface thereof or in the case of premises used for human habitation or as shops or offices by papering or painting the said interior surface; and the notice may require among other things the removal of wallpaper or other covering on the walls and in the case of verminous premises the taking of such other steps as may be necessary for the purpose of destroying or removing vermin."

55.—(1) If the Corporation take action under paragraph (b) of subsection (1) of section 83 (Cleansing of filthy or verminous premises) of the Act of 1936 as amended by this Act in its application to the city and in the opinion of the Corporation it is necessary to use gas to destroy vermin on the premises they may serve notices on the occupiers of premises in the fumigation area and the risk area as defined in the Hydrogen Cyanide (Fumigation of Buildings) Regulations in force for the time being requiring all persons to vacate those premises during such period as may be specified by the Corporation:

Power to require persons to vacate premises during fumigation.

Provided that the Corporation shall not require any person to vacate his premises under this section unless temporary shelter or house accommodation shall have been provided for him.

(2) Any person who contravenes a notice served under this section shall be liable to a penalty not exceeding five pounds.

(3) The Corporation may pay to any person required to vacate premises in pursuance of the powers contained in this section such reasonable allowance as they think fit towards his expenses in removing.

(4) The Rent and Mortgage Interest Restrictions Acts 1920 to 1939 shall not be deemed to cease to apply to a house or premises by reason only of the fact that such house or premises has or have been vacated in compliance with a notice served under this section.

56.—(1) As from the commencement of this section the following provisions shall have effect in the city:—

Registration of hawkers of food and premises.

(a) No person other than a person keeping open shop for the sale of food shall either by himself or by any person employed by him sell offer or expose for sale any food from any cart barrow or other vehicle or from any basket pail tray or other receptacle unless he is registered with the Corporation;

(b) No premises shall be used as storage accommodation for any food intended for sale from a cart

PART VI.
—cont.

barrow or other vehicle or from a basket pail tray or other receptacle unless the premises are registered as aforesaid.

(2) An application for a person to be registered under this section shall be made by himself and an application for premises to be so registered shall be made by the owner or occupier or intending owner or occupier thereof.

(3) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding one pound.

(4) (a) The Corporation may refuse to register any person or premises under this section or (after giving one month's notice to the person registered or in whose name the premises are registered) may revoke the registration of any person or premises under this section if they are satisfied (i) as regards a person that the public health is or is likely to be endangered by any act or default of his in relation to the quality storage or distribution of food or (ii) as regards premises that the premises are not suitable to be used for the purposes aforesaid:

Provided that before refusing or revoking such registration the Corporation shall serve upon the person applying for registration or upon the person registered or in whose name such premises are registered a notice to appear before a committee of the council not less than seven days after the date of the notice to show cause why the Corporation should not for reasons to be specified in the notice refuse to register or revoke the registration of the person or premises. Any such notice shall state the effect of paragraphs (b) and (c) of this subsection.

(b) If the Corporation refuse to register or revoke the registration of any such person or premises they shall if required by the person applying for such registration or the person registered or in whose name the premises are registered deliver to him within seven days of the receipt of such requirement a statement in writing of the ground or grounds upon which such refusal or revocation is based.

(c) Any person appealing to a court of summary jurisdiction under the section of this Act of which the marginal note is " Appeals " against any such refusal or revocation shall do so within fourteen days from the date of the notice of such refusal or revocation.

(5) The medical officer the sanitary inspector or any other officer of the Corporation appointed for the purpose shall have power at all reasonable times to enter and inspect any premises in the city in respect of which an application has

been received for registration under the provisions of this section and also any premises which he shall have reason to believe are being used as storage accommodation for food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle.

(6) The Corporation shall keep a register of the persons and premises registered under the provisions of this section.

(7) The provisions of this section shall not apply to any premises registered under section 14 (Registration of premises used in connection with the manufacture or sale of ice-cream or preserved food &c.) of the Food and Drugs Act 1938 or to any dairy or dairyman registered under Part II (Provisions as to milk dairies and artificial cream) of that Act or under any regulations made thereunder or under an enactment thereby repealed. 1 & 2 Geo. 6.
c. 56.

(8) The provisions of this section shall not apply to any premises used as a theatre cinematograph theatre music hall or concert hall or used as a canteen or refreshment room in or in connection with any factory or to any person in respect of the sale or offer or exposure for sale of any food in any such premises or in a factory for consumption therein by employees.

(9) In this section the expression "food" does not include any substance contained in containers of such materials and so closed as to exclude all risk of contamination.

57.—(1) As from the commencement of this section every person who shall within the city carry on the trade or business of a hairdresser or barber shall register his name and place of abode and also the premises in which such trade or business is carried on in a book to be kept at the offices of the Corporation for the purpose. Registration
of hairdressers
and barbers
and premises.

(2) The Corporation may make byelaws for the purpose of securing—

(a) the cleanliness of any premises registered under this section and of the instruments towels materials and equipment used therein; and

(b) the cleanliness of persons employed in such premises in regard to both themselves and their clothing.

(3) The person registered shall keep a copy of the byelaws made by the Corporation under this section displayed in the registered premises.

(4) The powers conferred by section 287 of the Act of 1936 (as applied by this Act) of entering premises for the purpose of ascertaining whether there is or has been any

PART VI.
—cont.

contravention of any byelaw made for the purposes mentioned in paragraph (b) of subsection (2) of this section shall not be exercised by any officer except the medical officer or the sanitary inspector.

(5) Any person carrying on such trade or business as aforesaid whose name place of abode and premises in which such trade or business is carried on have not been registered in accordance with subsection (1) of this section or whose registration has been cancelled or suspended as hereinafter provided or who contravenes any of the provisions of this section or of any byelaw made thereunder shall be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding one pound and a court of summary jurisdiction may (in lieu of or in addition to imposing a penalty) order the suspension or cancellation of the registration.

PART VII.

MARKETS AND FAIRS.

Alteration of
tolls
authorised by
Coventry
Market House
Act 1863.
26 & 27 Vict.
c. xcii.

58.—(1) The schedules to the Coventry Market House Act 1863 shall be read and have effect as if (a) under the heading "Tolls and rents. Shops" in Schedule (A) the charge of four shillings were substituted for the charge of two shillings and the words "if let by the day any daily sum not exceeding two shillings" were inserted immediately after the said charge and (b) as if under the respective headings of "Provision vegetable and other stalls stands and ground space" and "Ground space" in Schedule (B) the charge of threepence were substituted for the charge of one penny.

(2) The Corporation may with the sanction of the Secretary of State from time to time alter or add to the tolls rents stallages dues and charges specified in the schedules to the said Act of 1863 as amended by this Act and any such altered tolls rents stallages dues and charges shall from the date on which they come into operation be substituted for the corresponding tolls rents stallages dues and charges payable under the said schedules as so amended.

(3) The Corporation may also from time to time make such charges additional to those referred to in this section for the provision of light heating or water for the accommodation of persons using or occupying shops stalls standings or space in the markets of the Corporation and for the cleansing of and removal of refuse from any shop stall standing or space occupied by any such person as the Secretary of State may sanction.

59.—(1) The Corporation may from time to time make byelaws— PART VII.
—cont.

- (a) for regulating the hours during which pleasure fairs may be open to the public; Byelaws as to
pleasure fairs.
- (b) for securing safe and adequate means of ingress to and egress from the ground upon which any pleasure fair is held;
- (c) for the prevention and suppression of nuisances and for preserving sanitary conditions cleanliness order and public safety at any pleasure fair.

(2) In this section the expression “pleasure fair” means any entertainment which is run for profit and which consists of or includes any or all of the following whether or not in combination with any other forms of entertainment that is to say any travelling circus exhibition of human beings or performing animals merry-go-round roundabout switchback railway cocoanut shy hoop-la shooting gallery or swings or anything similar to any of the foregoing:

Provided that the said expression does not include any fair held by statute charter royal licence letters patent or ancient custom.

(3) Before making any byelaws under this section the Corporation shall give to the Amusement Caterers Association the Association of Amusement Park Proprietors of Great Britain and the Showmen’s Guild of Great Britain not less than one month’s notice of the intention of the Corporation to make such byelaws and such notice shall be accompanied by a copy of the draft byelaws and the Corporation shall confer with the said associations and guild thereon before they submit them to the Secretary of State for confirmation.

PART VIII.

WEIGHING MACHINES.

60. The Corporation may provide and maintain personal weighing machines as defined in the next succeeding section in any premises belonging to the Corporation and may charge for the use thereof. Corporation
may provide
personal
weighing
machines.

61.—(1) In this section the expression “personal weighing machine” means any weighing machine which is used or exposed for use in the city for the purpose of ascertaining the weight of a person— As to personal
weighing
machines.

- (a) for the use of which a charge is made; or

PART VIII.
—cont.

(b) which is kept in any shop premises or place in the city to which the public have access.

(2) As from the commencement of this section the owner or the person in charge of any personal weighing machine in the city which is false or unjust shall be liable to a penalty not exceeding two pounds or in the case of a second or any subsequent offence five pounds.

(3) As from the commencement of this section a personal weighing machine shall not be used or exposed for use in the city unless it has been stamped by an inspector of weights and measures in pursuance of the Weights and Measures Acts 1878 to 1936 and such stamp has not been cancelled or unless such machine has been examined and approved by an inspector of weights and measures of the Corporation and has been marked with a distinguishing mark by such inspector and after the expiration of three months from the coming into operation of this section every person who has in his possession or under his control any personal weighing machine which is not so stamped or marked shall be liable to a penalty not exceeding two pounds or in the case of a second or subsequent offence five pounds and the machine shall be liable to be forfeited.

(4) If any person forges or counterfeits or removes any stamp or any such distinguishing mark as is referred to in the last preceding subsection or knowingly exposes for use in the city any personal weighing machine without any such stamp or mark or with such forged or counterfeit stamp or mark thereon he shall be liable to a penalty not exceeding five pounds and the machine shall be liable to be forfeited.

(5) (a) Any inspector of weights and measures of the Corporation may at all reasonable times inspect and examine any personal weighing machine in the city and may seize and detain any such machine which is liable to be forfeited under the provisions of this section and may for the purposes of such inspection and examination enter any place (whether open or closed) where there is reasonable cause to believe that there is a personal weighing machine which he is authorised to inspect and examine.

(b) Any person who neglects or refuses to produce for such inspection any personal weighing machine in his possession or on his premises or refuses to permit any such inspector of weights and measures to examine the same or obstructs the entry of such inspector or otherwise obstructs or hinders him from acting under this section shall be liable to a penalty not exceeding five pounds or in the case of a second or any subsequent offence ten pounds.

(6) The Corporation may make byelaws—

- (a) generally with respect to the examination and inspection of personal weighing machines and the distinguishing marks to be fixed to personal weighing machines under this section and the circumstances and conditions in and under which such marks may be affixed or cancelled;
- (b) with respect to the tests to be applied for the purpose of ascertaining the accuracy and efficiency of personal weighing machines;
- (c) for fixing the fees to be paid to the Corporation for the examination approval and marking of personal weighing machines under this section or for the examination of such personal weighing machines as are found to be incorrect or defective;
- (d) for fixing the limits of error to be allowed on examination and approval or on inspection and examination of any personal weighing machine under this section.

(7) For the purpose of this section a personal weighing machine shall not be deemed to be stamped by reason of its bearing a cancelled stamp.

62. Any person keeping or who acts as a keeper of a weighing machine in the city who shall—

Offences by
weighing
machine
keepers and
others.

- (a) during ordinary business hours (which expression for the purposes of this section means from eight o'clock in the morning till six o'clock in the afternoon on weekdays other than Saturday and from eight o'clock in the morning till half-past twelve in the afternoon on Saturdays) wilfully neglect on application duly to weigh any vehicle with or without loading that shall come to the machine kept by him to be weighed;
- (b) not fairly weigh any such vehicle with or without loading;
- (c) not deliver to the purchaser of any such loading or any person interested therein on application a ticket or account containing the true weight of such loading;
- (d) give to the driver of any such vehicle a false ticket or account of the weight of such vehicle or the loading thereof;
- (e) weigh any vehicle knowing that anything has been added to the loading thereof so as to increase the weight of the same or that the wheels thereof have been changed between the time of the same being

PART VIII.
—cont.

weighed with its loading and the time of its coming back to be again weighed without its loading and shall not give immediate notice thereof to the person interested therein; or

- (f) knowingly assist in or connive at any fraud committed or attempted concerning the weighing of any such vehicle or the loading thereof or shall make or connive at making any false representation of the weight of the same respectively;

shall be liable to a penalty not exceeding ten pounds and in respect of any subsequent offence to a penalty not exceeding fifty pounds and in respect of any such subsequent offence the court may in lieu of or in addition to inflicting a fine impose any term of imprisonment not exceeding six months:

Provided that paragraphs (a) and (b) of this subsection shall not impose upon the commission an obligation to weigh any vehicle.

Drivers of
vehicles to
take them
to weighing
machines on
request.

63.—(1) The driver of any vehicle loaded with any goods to be sold by reference to the weight of such loaded vehicle shall at the request of the buyer or seller of any such goods or the person on whose behalf the same shall be consigned or of any of their respective agents or of an inspector of weights and measures or other officer appointed for the purpose by the Corporation take such vehicle with or without the loading thereof to be weighed by any instrument stamped by an inspector of weights and measures.

(2) If such vehicle shall be required to go a greater distance from the regular course of the road by which it would be otherwise necessary to pass than half a mile the owner of such vehicle shall be paid sixpence for every half-mile that such vehicle shall be taken out of the direct road as aforesaid.

(3) All charges made under subsection (2) of this section together with the tolls or fees to be paid for weighing any such vehicle shall be paid by the person requiring the same to be weighed and such charges shall if demanded be paid before the driver of such vehicle shall be obliged to go out of his way for the purpose of having the same weighed.

(4) The driver of any such vehicle who shall not upon being requested and paid such charges as aforesaid (if demanded) take such vehicle to such instrument as hereinbefore is directed or shall refuse to assist in the weighing of the same in such manner as the drivers of vehicles are used and accustomed to do shall be liable to a penalty not exceeding five pounds.

(5) For the purposes of this section the word " driver " includes the owner driver or person in charge of any vehicle. PART VIII.
—cont.

64. Any person who in regard to the weighing of any vehicle at any weighing machine or any instrument stamped by an inspector of weights and measures— Penalties
on persons
committing
frauds.

- (a) at or before the time of weighing any such vehicle shall place or knowingly leave any matter or thing in or about the same other than the proper loading thereof;
- (b) shall alter any ticket denoting the weight of any such vehicle or of the loading of the same;
- (c) shall make or use or be privy to the making or using of any false or fraudulent ticket or knowingly tender a false statement to a weighing machine keeper respecting the weight of any such vehicle or the loading thereof;
- (d) after the weighing of such vehicle with the loading of the same shall remove any part of such loading and afterwards dispose or attempt to dispose of the residue of such loading as being the full loading denoted by such ticket;
- (e) after such vehicle and the loading thereof shall have been so weighed shall substitute or attempt to substitute any vehicle with or without the loading thereof or shall change the wheels of the vehicle which shall have been so weighed or shall place thereon lighter wheels or make any alteration or do any other act to such vehicle before the same shall be brought back to the machine to be again weighed without the loading thereof;
- (f) when any such vehicle shall have been weighed with the loading thereof at any such machine as aforesaid if required shall refuse to bring back the same without alteration to be again weighed at the same machine; or
- (g) shall be guilty of any other fraudulent contrivance touching the weight of any such vehicle or of the loading thereof;

shall be liable to a penalty not exceeding ten pounds and in respect of any subsequent offence to a penalty not exceeding fifty pounds and in respect of any such subsequent offence the court may in lieu of or in addition to inflicting a fine impose any term of imprisonment not exceeding six months.

PART VIII.

—cont.

As to further
offences in
relation to
public
weighing
machines.

65.—(1) Any person who knowingly delivers or passes off or who knowingly causes or permits to be delivered or passed off with or in connection with a particular vehicle or the loading thereof any ticket which has been issued by a person keeping or acting as a keeper of a weighing machine to denote the weight of a different vehicle or loading shall be liable to a penalty not exceeding five pounds.

(2) Any person in charge of a vehicle who in regard to the weighing of such vehicle at any weighing machine refuses after being requested so to do by any person keeping or who acts as a keeper of the weighing machine to give his name and address and the names and addresses of the consignor and consignee of the load or who wilfully gives an incorrect name or address shall be liable to a penalty not exceeding five pounds.

PART IX.

FREEDOM OF THE CITY.

Repeal of
sections of Act
of 1940 and
Act of 1942
and
amendment
of Part XII
of Act of
1927.

66.—(1) Section 17 (Amendment of Part XII of Act of 1927 for purposes of period of present emergency) of the Act of 1940 and section 4 (Amendment of the Act of 1927 and the Act of 1940 for the purposes of the period of the present emergency) of the Act of 1942 are hereby repealed but without prejudice to any enrolment act or thing which may have been made or done or to any right which may have accrued to any person by virtue of the said sections.

(2) Part XII (Freedom of the city) of the Act of 1927 is hereby amended as shown in italics in the schedule to this Act and shall be read and have effect as set forth in the said schedule.

PART X.

FINANCIAL PROVISIONS.

Power to
borrow.

67.—(1) Subject to the provisions of this Act the Corporation shall have power in addition to and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and the Corporation shall pay off all moneys so borrowed within such periods as they may determine not exceeding those

respectively mentioned in the third column of the said table (namely):—

PART X.
—cont.

(1)	(2)	(3)
Purpose.	Amount.	Period for repayment.
(a) The purchase of lands and easements for the purposes of this Act.	£ 750	Sixty years from the date or dates of borrowing.
(b) The construction of so much of Works Nos. 2 4 6 and 9 authorised by this Act as does not consist of machinery.	385,000	Forty years from the date or dates of borrowing.
(c) The provision of machinery in connection with Work No. 6 authorised by this Act.	125,000	Twenty years from the date or dates of borrowing.
(d) The construction of Works Nos. 1 3 5 7 8 and 10 authorised by this Act.	25,000	Forty years from the date or dates of borrowing.
(e) The construction of Works Nos. 11 and 12 authorised by this Act.	5,000	Twenty years from the date or dates of borrowing.
(f) The additional cost of acquisition of lands and easements authorised by the Act of 1939.	31,000	Sixty years from the date or dates of borrowing.
(g) The additional cost of the construction of the following water-works authorised by the Act of 1939—		
(i) So much of Works Nos. 1 2 3 4 5 and 6 as does not consist of machinery.	55,000	Forty years from the date or dates of borrowing.
(ii) The provision of machinery in connection with Works Nos. 1 2 3 4 and 5.	35,000	Twenty years from the date or dates of borrowing.
(iii) Works Nos. 9 10 11 12 13 14 16 17 18 and 19.	1,315,000	Forty years from the date or dates of borrowing.
(iv) Works Nos. 7 and 8.	108,000	Forty years from the date or dates of borrowing.
(h) For paying the costs charges and expenses of obtaining this Act.	The sum requisite.	Five years from the passing of this Act.

PART X.
—cont.

(2) The periods set forth in the third column of the table contained in subsection (1) of this section are in relation to this Act the prescribed periods referred to in section 112 (Periods for repayment of principal moneys) of the Act of 1900.

As to exercise
of borrowing
powers.
8 & 9 Geo. 6.
c. 18.
9 & 10 Geo. 6.
c. 58.

68. It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 or of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Power to
Corporation
to advance
moneys for
erection &c. of
buildings.

69.—(1) The Corporation may advance money to the purchaser or lessee of any lands acquired from or leased by the Corporation for the purpose of enabling or assisting him to erect houses shops offices industrial buildings warehouses or other buildings on such lands or to adapt alter extend or improve any existing buildings thereon and to provide power heating and lighting therein:

Provided that any advance shall not exceed in the case of a house nine-tenths or in the case of any other building three-quarters of the amount which in the opinion of the Corporation will be the market value of the interest of such purchaser or lessee in the lands with the intended buildings as erected adapted altered extended or improved thereon.

25 & 26 Geo. 5.
c. 40.

(2) Every such advance shall be repaid with interest at a rate not less than the rate for the time being in operation under the Small Dwellings Acquisition Acts 1899 to 1923 as amended by section 92 (Amendments of Small Dwellings Acts) of the Housing Act 1935 within such period not exceeding thirty years from the date of the advance as may be agreed upon between the Corporation and such purchaser or lessee.

(3) The repayment may be made either by equal instalments of principal or by an annuity of principal and interest combined and all payments on account of principal and interest shall be made at such periods not exceeding half a year as may be agreed between the purchaser or lessee and the Corporation.

(4) Any such purchaser or lessee to whom an advance has been made may at any of the usual quarter days after one month's notice and on paying all sums due on account of interest repay to the Corporation the whole of the outstanding principal of the advance or any part thereof being one hundred pounds (or such less sum as may be provided in the instrument hereinafter referred to or as the Corporation may be prepared to accept) or a multiple of one hundred pounds (or of such less sum as aforesaid) and where the repayment is made by an annuity of principal and interest combined the amount so outstanding and the amount by which the annuity

will be reduced where a part of the advance shall be paid off shall be determined by a table to be annexed to the instrument securing the repayment of the advance.

PART X.
—cont.

(5) Before making any advance under this section the Corporation shall be satisfied that the repayment to them of the advance is secured by a mortgage of the building in respect of the erection adaptation alteration extension or improvement of which the advance is made and of the land upon which such building is to be erected or upon which any such building is to be adapted altered extended or improved and in lieu of or in addition to such mortgage by a mortgage of other land or buildings belonging to such purchaser or lessee or of the purchaser's or lessee's interest in any such buildings or land to the Corporation subject to the right of redemption by the said purchaser or lessee and requiring the said purchaser or lessee to keep the buildings insured against fire to the satisfaction of the Corporation and to produce the receipts for the premium paid in respect of such insurance to the Corporation when required by them and to keep any such buildings included in any such mortgage in good repair.

(6) The Corporation shall have power at all reasonable times to enter the building in respect of the erection adaptation alteration extension or improvement of which any advance is made by them and any other buildings included in the mortgage by any person authorised by them in writing for the purpose of ascertaining whether the conditions of this section and of the instrument aforesaid are complied with.

(7) The said purchaser or lessee may with the permission of the Corporation (which permission shall not be unreasonably withheld) at any time transfer his interest in the building in respect of the erection adaptation alteration extension or improvement of which such advance is made or any other building included in the mortgage and the land upon which the same is situate but any such transfer shall be made subject to the foregoing provisions of this section:

Provided that the Corporation shall not without the consent of the Board of Trade grant their permission to a transfer of interest in an industrial building under this subsection if such transfer will involve an alteration in the nature of the articles produced at such industrial building but the transferee shall not be concerned to inquire whether the consent of the Board of Trade is necessary or has been obtained.

(8) In this section the term "lessee" includes a person to whom the Corporation have agreed to grant a lease and "leased" shall be construed accordingly.

(9) Section 48 of the Coventry Corporation Act 1936 is hereby repealed.

PART XI.

MISCELLANEOUS PROVISIONS.

Sale of
products of
sludge gas.

70.—(1) The Corporation may supply to any person at such price as may be agreed between the Corporation and such person sludge gas and any residual product of sludge gas produced by them at their sewage disposal works as gas or in liquid or solid form.

(2) Section 18 (Power gas to include sludge gas) of the Act of 1942 is hereby repealed.

As to prizes
for garden
competitions.

71. The Corporation may expend on the provision of prizes in connection with any competition they may hold relating to their tenants' gardens such sums as they may from time to time think fit not exceeding in any one year the sum of one hundred pounds.

Maintenance
of graves.

72.—(1) The Corporation may accept a capital sum for the purpose of maintaining either for a period or in perpetuity a grave a grave space an urn or a memorial or monument either in a cemetery provided under the Public Health Acts or in a burial ground provided under the Burial Acts 1852 to 1906 or a crematorium provided under the Cremation Act 1902.

(2) The Corporation may apply for the purposes of this section any sum of money received by them before the passing of this Act in consideration of such maintenance.

(3) All such sums (unless applied in any manner duly authorised) shall be invested in statutory securities and an amount equal to the interest thereon shall be applied in maintaining graves grave spaces urns memorials and monuments in such manner as the Corporation think fit.

(4) Any such capital and the interest thereon shall be shown separately in the accounts of the Corporation relating to their cemeteries burial grounds or crematoria.

(5) In this section the expression "statutory securities" means any securities in which trustees are for the time being authorised by law to invest trust money and any mortgages bonds debentures debenture stocks stocks or other securities created by a local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rent charges or securities transferable by delivery or any securities of the Corporation.

38 & 39 Vict.
c. 83.

Cemetery fees
to be uniform.

73. Subsection (3) of section 101 (Dissolution of Foleshill Burial Board and consolidation of burial grounds and powers) of the Act of 1900 subsection (4) of section 78 (As to property and liabilities of Foleshill Parish Council as burial authority)

of the Coventry Corporation (Boundary Extension) Act 1927 subsection (4) of section 27 (Corporation's cemeteries and burial grounds to be regulated by Public Health (Interments) Act 1879) of the Act of 1928 and subsection (5) of section 70 (As to cemetery in parish of Walsgrave-on-Sowe) of the Coventry Extension Act 1931 are hereby repealed and the inhabitants of the city shall be entitled to use all the cemeteries for the time being of the Corporation and the same fees charges and regulations shall be applicable to all the said cemeteries.

PART XI.

—cont.

17 & 18 Geo. 5.
c. xci.

42 & 43 Vict.
c. 31.

21 & 22 Geo. 5.
c. lvi.

74.—(1) The Corporation may collect and may carry to or from any public washhouse provided by them clothes and other articles intended to be washed or which have been washed at such washhouse and when exercising the powers of this section shall make charges for the collection and carriage of such clothes and other articles: Collection and delivery of washing.

Provided that the charges to be made under this section shall be such as will produce a revenue sufficient to meet all expenditure incurred by the Corporation under this section.

(2) Nothing in this section shall relieve the Corporation from the necessity of obtaining the appropriate licence under the Road and Rail Traffic Act 1933 in respect of any goods vehicle to which that Act applies. 23 & 24 Geo. 5.
c. 53.

75. As respects byelaws made under this Act the confirming authority for the purposes of section 250 (Procedure &c. for making byelaws) of the Act of 1933 shall be— As to byelaws.

(a) in the case of byelaws made under the section of this Act of which the marginal note is "Byelaws as to pleasure fairs" the Secretary of State;

(b) in the case of byelaws made under the section of this Act of which the marginal note is "As to personal weighing machines" the Board of Trade;

(c) in all other cases the Minister.

76.—(1) The provisions of this Act to which this section applies shall come into operation on but not until such date as may be fixed by a resolution of the Corporation of which date public notice shall be given by the Corporation by advertisement in one or more local newspapers circulating in the city. Commencement of certain provisions of this Act.

(2) Every such advertisement shall also state the effect of the provisions to which it relates and the date specified therein as the date on which such provisions shall come into operation shall not be less than one month or in the case of the section

PART XI.
—cont.

of this Act of which the marginal note is “ Prohibition of smoke in certain areas ” not less than twelve months after the date of the first publication of the advertisement:

Provided that if the provision is one which requires the licensing or registration of any person or premises the application for the licence or registration may be made and determined before the provision comes into operation.

(3) A copy of a newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

(4) This section shall apply to the sections of this Act of which the marginal notes are respectively “ Prohibition of smoke in certain areas ” “ Registration of hawkers of food and premises ” “ Registration of hairdressers and barbers and premises ” and “ As to personal weighing machines ”:

Provided that—

(a) before passing a resolution fixing the date upon which the first named of the said sections shall come into operation the Corporation shall consult the Minister;

(b) this section shall not apply to the application of the provisions of the first named of the said sections to an area other than the central area as defined in that section.

(5) As respects any of the said provisions which requires the licensing or registration of persons carrying on any business or of premises used for any purpose it shall be lawful for any person who when such provision comes into operation—

(a) is carrying on any such business or using any premises for any such purpose; and

(b) has made application in accordance with the provisions of this Act for such licence or registration as is required by this Act;

to continue to carry on such business and to use such premises for such purpose until such time as he has been informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (6) of the section of this Act of which the marginal note is “ Appeals.”

Appeals.

77.—(1) Any person aggrieved by any requirement refusal or other decision of the Corporation or of any officer thereof under Part V (Streets buildings sewers and drains) or Part VI (Nuisances and sanitary matters) of this Act may except when some other right of appeal is conferred by this Act appeal to a court of summary jurisdiction.

(2) The procedure upon any such appeal shall be by way of complaint for an order and the Summary Jurisdiction Acts shall apply to the proceedings.

(3) The time within which any such appeal may be brought shall except where otherwise expressly provided be twenty-one days from the date on which notice of the requirement refusal or decision was published or served upon the person desiring to appeal and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

(4) In any case in which such an appeal lies the document notifying the requirement refusal or decision in the matter shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought unless these have already been stated in a notice to the person concerned informing him of his right to a hearing before the council or a committee of the council with regard to the same matter.

(5) Where a person aggrieved by any order determination or other decision of a court of summary jurisdiction under this Act is not by any other enactment authorised to appeal to a court of quarter sessions he may appeal to such a court.

(6) Where any requirement refusal order determination or other decision against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action or makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of such requirement refusal order determination or other decision or to use any premises for any purpose for which they were lawfully used up to such time—

(a) no proceedings in respect of any failure to execute the work or take the action shall be taken;

(b) the Corporation shall not execute such work or take such action; and

(c) any such person may carry on such business and use such premises for such purpose;

until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or withdrawn or fails for non-prosecution thereof.

(7) Where upon an appeal under this Act a court varies or reverses any requirement refusal or other decision of the Corporation effect shall be given to the order of the court and in particular any necessary consent certificate or other document shall be granted or issued and any necessary entry in any register shall be made.

PART XI.

—cont.

Application
of provisions
of Act of
1936.

78. The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

- Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);
- Section 277 (Power of councils to require information as to ownership of premises);
- Section 283 (Notices to be in writing; forms of notices &c.);
- Section 284 (Authentication of documents);
- Section 285 (Service of notices &c.);
- Section 286 (Proof of resolutions &c.);
- Section 287 (Power to enter premises);
- Section 288 (Penalty for obstructing execution of Act);
- Section 289 (Power to require occupier to permit works to be executed by owner);
- Section 291 (Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments);
- Section 292 (Power to make a charge in respect of establishment expenses);
- Section 293 (Recovery of expenses &c.);
- Section 294 (Limitation of liability of certain owners);
- Section 295 (Power of local authority to grant charging orders);
- Section 296 (Summary proceedings for offences);
- Section 297 (Continuing offences and penalties);
- Section 299 (Inclusion of several sums in one complaint &c.);
- Section 304 (Judges and justices not to be disqualified by liability to rates);
- Section 328 (Powers of Act to be cumulative);
- Section 329 (Saving for certain provisions of the Land Charges Act 1925):

15 & 16 Geo. 5.
c. 22.

Provided that the said sections 277 287 288 289 291 292 294 295 and 329 shall only apply to the provisions contained in Part V (Streets buildings sewers and drains) and Part VI (Nuisances and sanitary matters) of this Act.

Application
of provisions
of Acts of 1907
1911 1920
1927 1928
1930 Coventry
Corporation
Act 1936 and
Act of 1939.

79. The following provisions of the Act of 1907 the Act of 1911 the Act of 1920 the Act of 1927 the Act of 1928 the Act of 1930 the Coventry Corporation Act 1936 and the Act of 1939 shall so far as they are applicable for the purpose extend and apply with the necessary modifications to this Act:—

The Act of 1907—

- Section 18 (Reservation of water rights &c. on sale);
- Section 52 (Informations by whom to be laid);

Section 55 (Application of section 265 of Public Health Act 1875):

PART XI.

—cont.

38 & 39 Vict.
c. 55.

The Act of 1911—

Section 12 (Provisions as to compensation) Provided that in the application of the said section it shall be read and have effect as if the words “ the nineteenth day of November nineteen hundred and forty-seven ” were inserted therein instead of the words “ the first day of January one thousand nine hundred and eleven ”;

Section 15 (Persons under disability may grant easements &c.);

Section 17 (Proceeds of sale of surplus lands);

Section 55 (Apportionment of expenses in case of joint owners):

The Act of 1920—

Section 16 (Temporary stoppage of streets);

Section 133 (Damages and charges to be settled by court):

The Act of 1927—

Section 11 (Power to enter upon property for survey and valuation);

Section 13 (Benefits to be set off against compensation):

The Act of 1928—

Section 13 (Temporary discharge of water into streams):

Provided that in the application of the said section it shall be read and have effect as if the following proviso were added at the end of subsection (1) thereof:—

“ Provided that any water so discharged shall be as free as may be reasonably practicable from mud or soil or offensive matter and other matter injurious to fish or spawn or spawning beds or food of fish ”;

Section 24 (Acquisition of easements):

The Act of 1930—

Section 8 (Power to reinstate owners of property):

The Coventry Corporation Act 1936—

Section 9 (Compensation may be in land &c.);

Section 10 (Purchase of lands for exchange);

Section 16 (Carriageways footways sewers and other works):

PART XI.
—cont.

The Act of 1939—

Section 8 (Further powers of entry).

Section 95 (Compensation how to be determined).

Saving for
town and
country
planning.

80. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Crown rights.

81. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of Act.

82. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund of the city or out of moneys to be borrowed under this Act for that purpose.

The SCHEDULE referred to in the foregoing Act.

COVENTRY CORPORATION ACT 1927.

PART XII.

FREEDOM OF THE CITY.

103. This Part of this Act shall come into operation on the first day of January nineteen hundred and twenty-eight. Commencement of Part XII of this Act.

104. The Act 21 Geo. III chapter 54 and section 130 of the Act of 1920 are hereby repealed but without prejudice to any enrolment admission act or thing which may have been made or done or to any right which may have accrued to any person by virtue of the said Act and section previous to the repeal. Repeal of previous legislation.

105. In this Part of this Act the following expressions shall have the meanings hereby assigned to them:— Definitions in Part XII of this Act.

“Freedom” means the freedom of the city;

“Deed of apprenticeship” means a regularly executed and properly stamped indenture or deed of apprenticeship enrolled in the manner and within the period prescribed by this Act and includes an assignment of an indenture or deed of apprenticeship and a new indenture or deed of apprenticeship made in consequence of the termination of the apprenticeship by operation of law or act of the parties;

“Trade” means the trade or profession or combination of trades and professions specified in an enrolled deed of apprenticeship;

“Area of service” means the municipal area for the time being of the city subject nevertheless to the provisions of section 106 (Qualification for freedom) of this Act;

“Day for claiming” means the first Tuesday in every calendar month unless the first Tuesday falls within the same week as Easter Monday Whitsun Monday or August Bank Holiday in which case “day for claiming” shall mean the next ensuing Tuesday;

“Admission day” means the last Tuesday in every calendar month unless the last Tuesday falls within the same week as Easter Monday Whitsun Monday or Christmas Day in which case “admission day” shall mean the next ensuing Tuesday;

“The commanding officer” means the officer commanding the unit of the Armed Forces of the Crown of which a claimant for admission to the freedom is a serving member at the date of the signature by the claimant of a claim for admission and includes the officer in charge of any hospital hospital ship convalescent home or similar institution or place in which the claimant is residing or serving at the date of the signature by the claimant of a claim for admission.

Qualification
for freedom.

106. The qualification for obtaining the freedom shall (subject to compliance with the provisions of this *Part of this Act*) be—

- (a) The service of not less than five years' whole-time apprenticeship under a deed or deeds of apprenticeship to a trade within the area of service;
- (b) The attainment of the age of twenty-one years before admission to the freedom:

Provided that any period or periods during which an apprentice under a deed of apprenticeship to a trade within the area of service is by law required to undertake national service either as a member of the Armed Forces of the Crown or otherwise shall be treated for this Part of this Act as whole-time apprenticeship under such deed of apprenticeship to a trade within the area of service. The failure on the part of the apprentice to exercise any option he may have to defer the period of any such national service shall not affect the operation of this proviso:

Provided also that any period or periods not exceeding in the aggregate thirty months during which an apprentice under a deed of apprenticeship to a trade within the area of service at the request or with the concurrence of his master renders elsewhere than in the municipal area for the time being of the city whole-time service to the master in furtherance of the training of the apprentice in the said trade shall be treated as service of whole-time apprenticeship under such deed of apprenticeship to a trade within the area of service.

Enrolment
of deeds of
apprenticeship.

107. Every deed of apprenticeship which in the contemplation of all the parties thereto was entered into with a view to the apprentice qualifying for the freedom shall within six calendar months from the execution of the deed be presented or caused to be presented by the master to the town clerk for enrolment in the apprentices' enrolment book and a fee of one shilling shall be payable by the master in respect of the enrolment.

Failure to enrol.

108. If the master fails to present or cause to be presented for enrolment such a deed of apprenticeship as is mentioned in the section of this Act of which the marginal note is "Enrolment of deeds of apprenticeship" within six calendar months from the execution of the deed the deed shall at any time after the expiration of the said six calendar months be voidable at the option of the apprentice if he is of age or of his legal guardian or next friend if the apprentice is not of age and if such option is exercised any premium paid to the master in respect of the apprenticeship shall be returned by the master to the person by whom the premium was paid. If the option given by this section is not exercised within a reasonable time after the failure to enrol the deed of apprenticeship comes to the knowledge of the apprentice or his legal guardian or next friend the deed of apprenticeship shall continue to be of full force and virtue.

Discretion to
mayor to
dispense with
enrolment in
special cases.

109. If it is shown to the satisfaction of the mayor that a person has at any time in good faith served the full term of an apprenticeship which was entered into with a view to securing the freedom but is unable to obtain admission to the freedom because of the non-enrolment of the deed of apprenticeship within six calendar months from the execution of the deed and further (a) that the failure to

enrol the deed was due to ignorance or inadvertence or to a cause beyond the control of the person who has served the apprenticeship (b) that in all other material respects the provisions of this Act or of the previous Acts in regard to admission to the freedom have been complied with and (c) that having regard to all the circumstances of the case it would constitute a hardship to debar such person from the freedom then the mayor shall have power upon such person submitting a claim and producing evidence so far as lies in his power of compliance with the requirements of this Act or of the previous Acts in regard to admission to the freedom (except in regard to enrolment of the deed of apprenticeship) to admit such person to the freedom.

110. The town clerk shall have power to decide as to the eligibility of a deed of apprenticeship for enrolment under this Act but any person aggrieved by a decision of the town clerk shall have a right to appeal to the mayor within seven days thereafter and the decision of the mayor upon the appeal shall be final. Eligibility of deeds of apprenticeship for enrolment.

111.—(1) The town clerk shall keep an apprentices' enrolment book in which he shall enter in regard to every deed of apprenticeship which he accepts for enrolment the following particulars:— Apprentices' enrolment book.

- (i) The date of execution of the deed;
- (ii) The date of the enrolment;
- (iii) The name of the apprentice;
- (iv) The apprentice's place of abode;
- (v) The name of the master or masters;
- (vi) The master's place of business and if the master is a limited company the registered office of the company;
- (vii) The trade to which the apprentice is to serve;
- (viii) The consecutive number of the enrolled deed.

(2) The apprentices' enrolment book shall be open during business hours to the inspection of the public without fee.

112. The town clerk shall endorse upon each deed of apprenticeship enrolled by him a certificate of the date of enrolment and the consecutive number of the enrolled deed. Certificate of enrolment.

113. Every person seeking admission to the freedom shall deliver to the town clerk a claim in writing containing the following particulars:— Claims for admission.

- (i) The claimant's name;
- (ii) His place of abode at the time of the claim;
- (iii) The name of his master or masters;
- (iv) The place or places at which the claimant rendered his service under the deed or deeds of apprenticeship;
- (v) *Details of the duration of the periods (if any) which by virtue of either or both of the provisos to section 106 of this Act are to be treated for the purposes of this Part of this Act as service of whole-time apprenticeship under a deed of apprenticeship to a trade within the area of service;*
- (vi) The trade to which the claimant served;

and shall at the same time deposit with the town clerk the deed or deeds of apprenticeship relating to his service.

Order of claims. 114. Subject to the consideration of adjourned claims before new claims as provided by the section of this Act of which the marginal note is " Admission court " claims shall be dealt with in the priority determined by the date of the deeds of apprenticeship and all claims which are delivered to the town clerk up to twelve o'clock noon on the day for claiming in any month shall stand for consideration at the admission court for that month.

Publication
of list of
claimants.

115. The town clerk shall not later than twelve o'clock noon on the day following the day for claiming cause to be affixed to the notice board of the council house and to the notice board of St. Mary's Hall a list of all claimants whose claims stand for consideration at the admission court for that month and such list shall be signed by the town clerk and shall contain the particulars which the claimants have stated in their claims.

Admission
court.

116.—(1) An admission court shall be held by the mayor on the admission day in each month at such hour as the mayor may determine for the purpose of deciding upon claims for admission to the freedom and the mayor shall have power to adjourn the court from time to time and in case of exceptional circumstances may decide that no admission court shall be held in a particular month. At each court the adjourned claims (if any) shall be considered first and then new claims.

(2) Every admission court shall be open to the public.

Evidence to
be produced by
claimants.

117.—(1) Every claimant shall appear at the admission court in person and in order to be entitled to admission shall—

- (a) Substantiate on oath the statements made in his claim;
- (b) Produce a certificate of birth or other satisfactory evidence of his age:

Provided that in order to be entitled to admission a claimant who at the date of signature of his claim for admission is a serving member of the Armed Forces of the Crown and in respect of whom the mayor is satisfied that it would be unreasonable to require the claimant to appear in person at the admission court may in lieu of appearing in person at the admission court and complying with paragraphs (a) and (b) of this subsection produce to the town clerk—

- (i) *a statement in writing signed by the claimant substantiating the statements made in the claim;*
- (ii) *a certificate of birth or other satisfactory evidence of the claimant's age;*
- (iii) *a certificate in writing by the commanding officer that the claimant was a serving member of the Armed Forces of the Crown at the date of the signature of the claim by the claimant.*

(2) The master or masters to whom the claimant has served apprenticeship shall also appear at the admission court and shall substantiate on oath all statements of the claimant which relate to the service to him or them. Where the master is a limited company or other corporation such company or corporation may appoint in writing a person to attend the admission court on their behalf and

with the permission of the mayor any other master may appoint in writing a person to attend the admission court on his behalf but the mayor may decline to accept the evidence of such a person if he is of opinion that such person cannot testify as to the claimant's service from his own knowledge.

In the case of a claimant who is a serving member of the Armed Forces of the Crown the town clerk shall submit the statement and certificates referred to in the proviso to subsection (1) of this section to the mayor at the admission court and the mayor shall be entitled to receive the same as sufficient evidence for the purposes of this Act in support of and concerning the facts to be substantiated or proved by the claimant.

(3) The mayor shall have power to admit any other evidence which he may think fit in regard to the claim.

(4) All evidence in the admission court (*except evidence by a serving member of the Armed Forces of the Crown in respect of whom the mayor is satisfied that it is unreasonable to require such member to appear in person at the admission court*) shall be given on oath and the mayor is hereby authorised to administer oaths for that purpose.

(5) *The mayor may require that evidence on any matter affecting a claim for admission shall be given by affidavit.*

(6) The decision of the mayor upon each claim shall be final.

118. Every person *entitled* whom the mayor decides to admit to the freedom shall take before the mayor the customary oath of a freeman of Coventry and shall pay an admission fee of three shillings whereupon he shall be admitted to the freedom and shall be entitled to all the rights liberties franchises and privileges of a freeman of Coventry:

Provided that the mayor shall be entitled to admit to the freedom without the taking of the customary oath or the payment of any admission fee any person who is a serving member of the Armed Forces of the Crown and who has complied with the provisions of this Part of this Act and from the date when the mayor admits any such person to the freedom that person shall be entitled to all the rights liberties franchises and privileges of a freeman of Coventry A person admitted to the freedom under this proviso may attend at any subsequent admission court for the purpose of taking before the mayor the customary oath of a freeman of Coventry.

119.—(1) The town clerk shall keep a freemen's admission book and shall in respect of every admission court enter therein— Freemen's admission book.

(a) In regard to every claimant the name place of abode and trade of the claimant;

(b) In regard to every person admitted as a freeman the date of the deed or deeds of apprenticeship and the particulars which are specified in the section of this Act of which the marginal note is "Claims for admission" as necessary for the claimant to state in his claim;

and the town clerk shall subscribe his name to the particulars stated in paragraph (a) and the mayor shall subscribe his name to the particulars stated in paragraph (b) of this subsection.

(2) The freemen's admission book shall be open during business hours to the inspection of the public without fee.

Evidence of
contents of
freemen's
admission book.

120.—(1) A copy of an entry in the freemen's admission book signed by the town clerk shall be conclusive evidence of the admission of any person to the freedom.

(2) The town clerk shall be authorised to charge a fee of one shilling for each certified copy of an entry from the freemen's admission book.

Publication of
list of persons
admitted.

121. The town clerk shall not later than twelve o'clock noon on the day following an admission court cause to be affixed to the notice board of the council house and to the notice board of St. Mary's Hall a list of all the persons who were admitted to the freedom at that court and shall sign such list and state therein the particulars which are herein prescribed for entry in the freemen's admission book *The town clerk shall indicate separately in the said list serving members of the Armed Forces of the Crown.*

Public notice
to be given of
Part XII of
this Act.

122. Public notice of the provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the city and by a notice affixed outside the council house and to the notice board of St. Mary's Hall.

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